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Case Number: 25PSCV03703 Hearing Date: July 20, 2026 Dept: 6

CASE

NAME: Sergios

Machado v. Ford Motor Company, et al.

Larry

Chae of Strategic Legal Practices, APC's Motion to be Relieved as Counsel for

Plaintiff Sergio Machado

TENTATIVE

RULING

The Court DENIES Larry Chae of Strategic Legal Practices, APC's Motion to be Relieved as Counsel for Plaintiff Sergio Machado without prejudice.

Counsel is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a lemon law case. On October 14, 2025, plaintiff Sergios Machado (Plaintiff) filed this action against defendants Ford Motor Company (Manufacturer), Performance Ford (Dealership) (collectively, Defendants) and Does 1 through 10, alleging causes of action for violation of subdivision (d) of Civil Code section 1793.2, violation of subdivision (b) of Civil Code section 1793.2, violation of subdivision (a)(3) of Civil Code section 1793.2, breach of the implied warranty of merchantability, negligent repair, and fraudulent inducement – concealment. On November 17, 2025, Defendants answered

the Complaint. On January 27, 2026, the Court granted Manufacturer's Motion for Judgment on the Pleadings as to the Sixth Cause of Action for fraudulent inducement – concealment without leave to amend.

On June 22, 2026, Larry Chae of Strategic Legal Practices, APC moved to be relieved as counsel for Plaintiff. The motion is unopposed.

LEGAL STANDARD

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted, provided that there is no prejudice to the client, and it does not disrupt the orderly process of justice. (See *Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915; *People v. Prince* (1968) 268 Cal.App.2d 398, 403-407.)

A motion to be relieved as counsel must be made on Judicial Council Form MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).) The requisite forms must be served "on the client and on all parties that have appeared in the case." (Cal. Rules of Court, rule 3.1362, subd. (d).)

DISCUSSION

Larry Chae of Strategic Legal Practices, APC (Counsel) seeks to be relieved as counsel for Plaintiff on the grounds that there has been a breakdown of the attorney-client relationship. (Chae Decl., ¶ 2.) The Court finds this a proper basis for withdrawal. A breakdown in the attorney-client relationship is grounds for allowing the attorney to withdraw. (*Estate of Falco* (1987) 188 Cal.App.3d 1004, 1014.) Grounds for permitting an attorney to withdraw from representation also include the client's conduct that, "renders it unreasonably difficult for the lawyer to carry out the representation effectively[.]" (Rules of Professional Conduct, rule 1.16, subd. (b)(4).)

Counsel has also submitted the notice of motion and motion, declaration, and proposed order on Judicial Council forms MC-051, MC-052, and MC-053. (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

However, the Court notes some uncertainty regarding Counsel's efforts to confirm Plaintiff's current address. Counsel's declaration indicates both having confirmed Plaintiff's current address within the past 30 days by mail, return receipt requested, and that Counsel has been unable to confirm the address is current after mailing the motion papers to Plaintiff's last known address, return receipt requested. (Chae Decl., ¶ (b), subds. (1)-(2).) It is thus unclear to the Court whether Counsel has actually confirmed Plaintiff's last known address is current. To the extent Counsel may have served the motion papers electronically on Plaintiff, Counsel's declaration does not clearly show that they were actually served electronically on Plaintiff; it only indicates that copies were also being sent to Plaintiff's email address. (Chae Decl., ¶ 7; see Cal. Rules of Court, rule 3.1362, subd. (d)(2).) Counsel also provided no proof of service of the moving papers on Plaintiff.

Moreover, future hearing dates and information in the declaration and proposed order fail to list the hearing dates for the discovery motions set for hearing on August 19, 2026, at 8:30 a.m. (Chae Decl., ¶ 5; Proposed Order, ¶ 8.) Counsel provides information for a trial date in the declaration, but then indicates no trial is set in the proposed order. (Chae Decl., ¶ 6, subd. (b); Proposed Order, ¶ 9, subd. (b).) No trial date is currently scheduled, so Counsel's declaration is incorrect on that point. Counsel also failed to complete paragraphs 3 and 5 on the proposed order. (Proposed Order, ¶¶ 3, 5.)

Based on the foregoing, the Court DENIES the motion without prejudice.

CONCLUSION

The Court DENIES Larry Chae of Strategic Legal Practices, APC's Motion to be Relieved as Counsel for Plaintiff Sergio Machado without prejudice.

Counsel is ordered to give notice of the Court's ruling within five calendar days of this order.